ELAINE IS SANE

5 to Life--But She 'Needs Care'

WEATHER FORECAST

Bay Area: Mostly cloudy today with occasional rain beginning tonight or tomorrow. Little change in temperature. Chances of rain: 4 in 10 Tuesday night; 7 in 10 tomorrow.

Full Report on Page 31

San Francisco Chronicle
THE VOICE OF THE WEST
FINAL
94th YEAR No. 28 CCCCAAA TUESDAY, JANUARY 28, 1958 10 CENTS GArfield 1-1111

Roommate Killer

Jury Finds Elaine Legally Sane, 'but She's Mentally Ill'

By Allen Brown

Elaine Soule was legally sane when she murdered her pretty, young roommate last July, her Redwood City jury decided yesterday.

The honey-haired, 20-year-old Burlingame typist will be sentenced February 10 to serve five years to life in prison for second-degree murder.

But Superior Judge Frank B. Blum said he will recommend that the Department of Corrections transfer Miss Soule to a State mental hospital for extensive psychiatric treatment while she is serving her sentence.

The jury of seven men and five women took only two hours last week to convict Miss Soule of second-degree murder for the July 24 bludgeoning and stabbing of Catherine (Kit) Elvins, 19.

'NOT INSANE'

The same jury yesterday required nearly twice as much time to bring in the verdict of "not insane."

Miss Soule maintained her stoic calm when the verdict—ending more than three tense weeks in court — was announced. But her sister, Dorothy Ward of Sunnyvale, broke into uncontrolled sobs. Her mother, Mrs. Frank A. Soule of Freeport, N. Y., slowly shook her head in disbelief.

The jurors agreed, later, that Miss Soule was mentally ill when she killed her roommate.

'WE HAD TO'

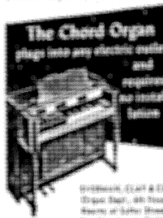
Said Jury Foreman Robert J. Foster of San Carlos: "We definitely feel she needs psy-

See Page 4, Col. 1

Sherman Clay

FREE HOME TRIAL of the HAMMOND CHORD ORGAN

The Chord Organ plugs into any electric outlet and requires no installation



S.P.'s Shasta Hits Truck At Fairfield

Special to The Chronicle

FAIRFIELD, Jan. 27 — The Shasta Daylight, a Southern Pacific streamliner bound from Oakland to Portland, Ore., crashed into a loaded lumber truck here this morning, sending the driver to the hospital and damaging seven cars on the nine-car train.

Four of the 107 train passengers were shaken up and required first-aid, but a Southern Pacific spokesman said they would continue their journey.

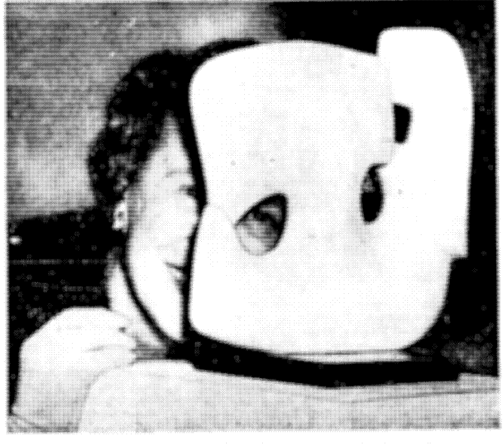
A relief train was sent from Oakland to replace damaged cars at the Fairfield-Suisun station. The Daylight was due to reach Portland at 3:45 tomorrow morning, four hours late.

A recorder in the engine cab showed the train was traveling 40 to 45 miles an hour when it smashed into the lumber truck and trailer at the Rio Vista crossing on U. S. 12, at the Suisun-Fairfield boundary line.

Lumber from the truck was scattered a quarter of a mile along the tracks. Flying two-

See Page 4, Col. 4

Sighting a Siren



Mrs. Harry Lewis Winston, who with her husband has brought to San Francisco an impressive collection of modern art, peeked out at the city yesterday through "The Siren," a sculpture by Etienne Hajdu. In another sense, the Winstons are always looking at the world through Twentieth Century art works they've taken into their homes "as friends." (Stories on Pages 5, 9.)

Rossellini Files for Annulment

Special to The Chronicle

ROME, Jan. 27—Film director Roberto Rossellini, already legally separated from Ingrid Bergman, has moved to put a final, legal end to their 9-year-old broken romance by suing for an annulment of their marriage.

In his suit, Rossellini, 51, claimed Ingrid, 41, who bore him three children, was married and not legally free to marry at the time of their proxy wedding in Mexico, May 24, 1950, the news agency Italia said today.

UNCONTESTED

The annulment suit here, which Ingrid has not contested, would leave Rossellini free to marry Sonali Das Gupta, Indian film scriptwriter whose meeting with Rossellini last year broke up his marriage to Ingrid.

Sonali, now hiding out somewhere in Europe, is expecting a child by Rossellini shortly. She has yet to obtain a divorce from her husband in India, Hari Das Gupta.

ITALIAN LAW

Rossellini is believed to be seeking an annulment—rather than a comparatively simple Mexican divorce—so that Sonali could be accepted as his legal wife under Italian law, avoiding possible legal complications for them both. Italy does not recognize divorces.

At that time, Rossellini argues, Swedish courts had not yet recognized Ingrid's Mexican divorce in February, 1950, from Dr. Peter Lindstrom, the Swedish neurosurgeon who was her first husband.

Ike's Education Plan Goes to Congress

WASHINGTON, Jan. 27 (AP)—President Eisenhower today gave Congress his plan for a concentrated four-year program of Federal aid to education. He asked prompt enactment "in the essential interest of national security."

The science-slanted blueprint, designed to spur U. S. technology in its race against Russia, would cost about $1.6 billion spread over the next four years. The Federal Government would pick up $1 billion of the bill, States and local communities the remainder.

Three times the President referred to the "emergency" situation, and he told Congress at one point: "This is a temporary program and should not be considered as a permanent Federal responsibility."

SCHOLARSHIPS

Mr. Eisenhower's plan was first announced in detail December 30 by Marion B. Folsom, Secretary of Health, Education and Welfare.

The heart of the program calls for 10,000 four-year scholarships annually for the next four years for qualified high school graduates who lack funds for a college education. Preference would be

See Page 5, Col. 1

Gas Price War Spreads Through S. F.

The Bay Area gasoline price war that has driven major brands as low as 22.9 cents per gallon in parts of Oakland had spread over most of San Francisco yesterday.

Prices here had not hit the low marks established in Oakland, but were 3 to 4 cents below so-called "normal" levels.

"There's price cutting almost all over the city," Wallace Pettigrew, treasurer of the San Francisco Petroleum Retailers' Association, conceded.

In the Richmond and Sunset districts of the city prices the past few days have

See Page 4, Col. 6

New Storm Due

Gale warnings went up again yesterday on both sides of the California-Oregon border as a new storm came churning in from the Gulf of Alaska.

Rain was forecast as far south as Ukiah and Red Bluff today. It should reach the Bay Area tonight or tomorrow.

Winds up to 50 miles per hour were expected north of Point Arena. Southwest winds of 8 to 18 miles per hour were forecast for the bay today, but were expected to increase tonight.

The Weather Bureau said that the High Sierra was in for more snow.

U. S., Russia OK Cultural Exchange

WASHINGTON, Jan. 27 (AP) — The United States and Russia today agreed on a momentous two-year exchange of films, radio-television broadcasts and about 500 experts in fields ranging from ballet dancing to horse doctoring.

Soviet Ambassador Georgi Zarubin, who signed the agreement with William S. B. Lacy of the State Department, called it the most important achievement of his five years in Washington.

President Eisenhower applauded the accord, saying he hoped it would be carried out in the same spirit which has animated the negotiations.

"I sincerely trust," Mr. Eisenhower said in a statement, "that through such agreements a better understanding will result between the peoples of the United States and the Soviet Union."

'FIRST STEP'

The State Department issued a statement hailing the agreement as a "significant first step in the improvement of mutual understanding."

Conspicuously absent from the agreement were the two things the U. S. most wanted: An end to Kremlin jamming of America Russian-language radio broadcasts, and regular uncensored radio-TV commentaries by American and

See Page 8, Col. 6

Dulles Offers Aid if Mideast Is Invaded

ANKARA, Turkey, Jan. 27 (AP)—Secretary of State John Foster Dulles pledged to America's anxious friends in the Baghdad Pact today that the United States stands ready to strike back against aggression to save the Middle East from "the scourge of invasion."

The Secretary spoke in a flag-draped hall with delegates assembled for the opening meeting of the pact's council of ministers. The U. S. is not a member of the pact, but belongs to three of its committees.

WAY CLEARED

After hearing a call from leaders of Turkey, Iran, Iraq and Pakistan for more and urgent aid to combat Communism, Dulles declared:

"In relation to the Middle East, the Congress has authorized the President to use armed forces to assist any nation or group of nations in the Middle East — and the Baghdad Pact constitutes such a group — requesting assistance against armed aggres-

See Page 7, Col. 1

Report to Congress

McElroy Urges Defense Shakeup 'This Session'

From United Press and New York Herald Tribune

WASHINGTON, Jan. 27—Secretary of Defense Neil H. McElroy has told Congress that the Pentagon should be reorganized during this session of Congress.

The Secretary testified before the Senate Preparedness Subcommittee last Wednesday that a reorganization plan may be ready for Congress by the end of March, "but it could take longer."

McElroy said, in heavily censored testimony released today:

"We are aiming at the end of March because I know the temper of Congress and, I think, to some degree, of the country, which is that we should try to get some action on this during this session, and that is our objective."

TESTIMONY

McElroy also told the subcommittee, headed by Senator Lyndon B. Johnson (Dem., Texas) that:

He has authorized military officers to give Congressmen their personal views in conflict with Administration decisions.

His only requirements are that a dissident officer be truthful in testifying as a member of the "Defense Department team" as well as of his own individual service.

Johnson asked McElroy if

See Page 8, Col. 2

Kadar Resigns As Premier; Still Is Boss

BUDAPEST, Hungary, Jan. 27 (AP)—Puppet Premier Janos Kadar, installed as Hungary's chief of government when Soviet troops crushed the 1956 revolution, resigned as Premier today.

But he retained the job of first secretary—boss—of the ruling Socialist Workers (Communist) party.

Kadar announced his resignation in a speech to the opening meeting of a new Parliament session. The address was his final report as Premier.

Kadar proposed to take a lesser post such as Minister of State—a Cabinet job without specific duties—and turn over the premiership to his first deputy, Ferenc Munnich, 72.

NO SURPRISE

Western diplomats said the change will make no difference in Hungarian policy.

The resignation had been expected. It had been rumored before every recent Parliament session as a move to correct what the Communists considered an ab-

See Page 8, Col. 3

Ike Presents Plan to Give Allies A-Data

New York Herald Tribune Service

WASHINGTON, Jan. 27 The Administration asked Congress today for authority to strengthen the nuclear military power of the North Atlantic Treaty Organization by giving allied countries atomic materials, component parts and much information now held secret.

This would include additional information about the design of weapons, but would not include the right to supply our allies with nuclear missile warheads.

The proposed liberalization of the Atomic Energy Act of 1954 grew out of the Eisenhower-Macmillan talks here in October and the December NATO meeting in Paris. It is an answer to the Russian scientific gains symbolized by the launching of the Sputniks.

Foreshadowed in President Eisenhower's State of the Union message, the proposed changes in the Atomic Energy Act were forwarded to the Joint Congressional Committee on Atomic Energy today by Admiral Lewis L. Strauss, chairman of the Atomic Energy Commission.

The proposed changes would enable the President to give friendly nations:

1—"Additional design information necessary to permit essential training and planning by our allies."

2—"Additional atomic

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Two Chinese Flyers Continue Fight Here to Stay Free

By Mel Wax

If they go home to China they will be shot.

If they return to Formosa, the homeland of many anti-Communist Chinese, they face the same fate.

For them there is no choice between the rigid Communist discipline on the mainland and the "corrupt dictatorship" on Chiang Kai Shek's island.

That is the argument of two young aviators—former flyers for the Chinese Nationalists—who seek political asylum in the United States.

CHENG FU SHENG
"They'd shoot us"

LIN FU MEI
Appeal for asylum

LONG ATTEMPT

Given the opportunity, they'd remain here, in San Francisco. They would enlist in the United States Air Force, as they have tried to do for six long, tense years.

These men without a country are Cheng Fu Sheng, 32, of 313 Scott street, and Lin Fu Mei, 33, of 145 Fell street. Both are in the United States illegally. They are deserters from the Chinese Nationalist Air Force.

Within the next few days they will bring their case to the Ninth Circuit Court of Appeals—the latest move in a six-year-old legal battle. If they lose again they will turn either to the Supreme Court of the United States or to Congress.

ADVANCE TRAINING

Cheng was a captain and Lin a lieutenant in the Chinese Air Force. Both were bright young men, sent to America for advance training. Both deserted in San Francisco rather than fight for a government they considered—and still consider—undemocratic.

Cheng is small, with thick dark hair and a thin, nervous smile. He speaks for both when he says:

"They'd shoot us. There'd be no trial. We can't go back."

Cheng was born in Honan Province, June 12, 1925; Lin in Foo Chow, Fukien Province, on November 27, 1924.

When Cheng was 20 he came to the United States as a Chinese Air Force trainee. That was in 1945. He returned to China in December, 1946, to fight in the Civil War with the Chinese Fifth Group, based at Nanking.

He flew from Nanking until three days before the city fell to the Communists. Then from Formosa, Chunking and Kunming—any place a plane could land and be refueled—Cheng flew against the enemy. He was on 80 missions, giving ground support for Chiang's fleeing troops, performing reconnaissance assignments, bombing, dropping supplies, evacuating casualties.

When the Communists occupied all of China, Cheng flew from Hainan and Chowshan. And when these offshore islands fell, he flew from Formosa.

There Lieutenant Cheng married another refugee from the mainland, a girl who had escaped from Nanking a few hours before the city was sacked by the invaders.

The Chengs—he was now a captain—became parents of a daughter in 1952. Then Cheng was shipped to Tyndall Air Force Base, Florida, for advance training. He has not seen his wife or child since.

"I tried to enlist in the American Air Force while I was still in China," Cheng recalled the other day. "They wouldn't take me."

INTENTION

"When I came to America I still intended to return to Formosa and to fly for the Nationalists.

"But I realized while I was here that I could never go back. There was nothing good in the future.

"Chiang's government is corrupt. It is a dictatorship. There is no democracy. I could not fight for him again.

"Just as I cannot return to Formosa, I cannot go back to China, my homeland. It is well-known that I am anti-Communist.

"For me," he said, "the only hope is to remain in America."

Lin deserted under similar circumstances in May, 1953. Their cases have been argued separately before immigration officials and together in Federal Courts. The same lawyer, Arlin W. Hargreaves, is representing both of them.

Hargreaves argues:

1—Their residence is not Formosa. They were there only because they were ordered there by the Air Force. Their residence is the mainland, and if they were returned to the mainland the Communists would shoot them.

2—Even if immigration officials rule their residence is Formosa, they would still be subject to "physical persecution" if they go back.

In the hearings the immigration authorities, representatives of the Attorney General's office, and the courts have made varied findings and concessions about their residence — a technical consideration that has seldom been so intensively disputed.

But so far, neither the court nor immigration officials have conceded the deserters would be subject to physical persecution if they are sent back to Formosa.

This position is based primarily on a letter from a former Consul General of China in San Francisco. He wrote to the court that, at most, the men would be subject to a three-year jail term for desertion.

Against this, Hargreaves introduced a statement from K. C. Wu, governor of Formosa from Dec. 21, 1949, until he resigned April 16, 1953.

Wu told of a Chinese Nationalist Air Force lieutenant who deserted in 1951. He sought asylum with the Americans on Okinawa and they returned him to Formosa. He was shot, said Wu, without a trial.

Hargreaves also introduced statements by former New York Governor Thomas E. Dewey and Adlai Stevenson, two-time Democratic presidential nominee, both referring to "Russian-type" rule in Formosa.

District Judge Edward P. Murphy, in a finding of fact filed January 16, turned Cheng and Lin down.

But, in the phrasing of his decision, he expressed marked sympathy for their plight.

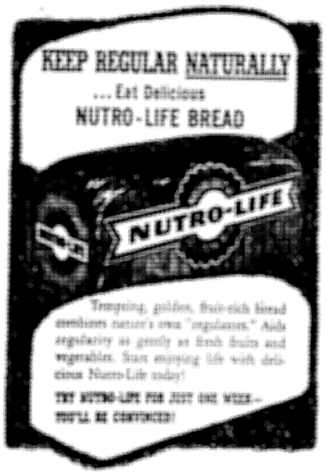
"He didn't shut the door," their lawyer said. "We'll appeal and we'll appeal again and again. We aren't licked yet."

DC-6B AIRCOACH

WESTERN AIRLINES

REACH EUROPE RELAXED ON
French Line
THE LIBERTE
sails on FEBRUARY 20*
French Line

5 outdoor benches you can build



KEEP REGULAR NATURALLY
... Eat Delicious
NUTRO-LIFE BREAD

NOW...for that Regal Feeling
WHEN THE DAY IS DONE...
REGAL PALE

REGAL PALE
REGAL PALE